

EUROMARKET DESIGNS, INC.)
)
)
Complainant,)
)
)
v.) DOCKET NO. 25-03
)
)
MSC MEDITERRANEAN SHIPPING COMPANY)
SA, OCEAN NETWORK EXPRESS PTE. LTD.)
EVERGREEN LINE JOINT SERVICE)
AGREEMENT (FMC#011982), EVERGREEN)
MARINE CORP. (TAIWAN) LTD., EVERGREEN)
MARINE (UK) LIMITED, ITALIA MARITTIMA)
SpA, EVERGREEN MARINE (HONG KONG))
EVERGREEN MARINE (SINGAPORE) PTE, LTD.)
HMM COMPANY LIMITED, MAERSK A/S, CMA)
CGM S.A., APEX MARITIME CO, INC., CHINA)
UNITED TRANSPORT, INC., COSCO SHIPPING)
LINES CO., LTD., AND WAN HAI LINES, LTD.)
)
Respondents.)
)

I. INTRODUCTION

SECOND: Denies the allegations in paragraph “2” of the Verified Complaint insofar as they relate to MAERSK and defers all questions of law to the Commission.

THIRD: Denies the allegations alleged in paragraph "3" of the Verified Complaint insofar as they relate to MAERSK and defers all questions of law to the Commission.

FOURTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "4" and defers all questions of law to the Commission.

FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "5" and defers all questions of law to the Commission.

SIXTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "6" and defers all questions of law to the Commission.

SEVENTH: Denies the allegations in paragraph "7" of the Verified Complaint insofar as they relate to MAERSK.

EIGHTH: Denies the allegations in paragraph "8" of the Verified Complaint insofar as they relate to MAERSK.

NINTH: Denies the allegations in paragraph "9" of the Verified Complaint insofar as they relate to MAERSK.

TENTH: Denies the allegations in paragraph "10" of the Verified Complaint insofar as they relate to MAERSK.

ELEVENTH: Denies the allegations in paragraph "11" of the Verified Complaint insofar as they relate to MAERSK.

TWELFTH: Denies the allegations in paragraph "12" of the Verified Complaint insofar as they relate to MAERSK.

THIRTEENTH: Admits that MAERSK and MSC participated in the 2M Alliance until January, 2025; but except as so specifically admitted, denies knowledge or information as to the other allegations in paragraph "13" of the Verified Complaint.

FOURTEENTH: Denies the allegations in paragraph “14” of the Verified Complaint insofar as they relate to MAERSK.

FIFTEENTH: Denies the allegations in paragraph “15” of the Verified Complaint insofar as they relate to MAERSK and defers all questions of law to the Commission.

II. THE COMPLAINANT

SIXTEENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “16” of the Verified Complaint.

III. THE RESPONDENTS

Service Contract Respondents

MSC

SEVENTEENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “17” of the Verified Complaint.

ONE

EIGHTEENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “18” of the Verified Complaint.

NINETEENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “19” of the Verified Complaint.

Evergreen

TWENTIETH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “20” of the Verified Complaint.

TWENTY-FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “21” of the Verified Complaint.

TWENTY-SECOND: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “22” of the Verified Complaint.

TWENTY-THIRD: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “23” of the Verified Complaint.

TWENTY-FOURTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “24” of the Verified Complaint.

TWENTY-FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “25” of the Verified Complaint.

TWENTY-SIXTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “26” of the Verified Complaint.

HMM

TWENTY-SEVENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “27” of the Verified Complaint.

TWENTY-EIGHTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “28” of the Verified Complaint.

Maersk

TWENTY-NINTH: Admits the allegations in paragraph “29” of the Verified Complaint.

THIRTIETH: Admits the allegations in paragraph “30” of the Verified Complaint.

THIRTY-FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “31” of the Verified Complaint.

CMA

THIRTY-SECOND: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “32” of the Verified Complaint.

THIRTY-THIRD: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “33” of the Verified Complaint.

Apex Shipping

THIRTY-FOURTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “34” of the Verified Complaint.

CU Lines

THIRTY-FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “35” of the Verified Complaint.

COSCO

THIRTY-SIXTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “36” of the Verified Complaint.

THIRTY-SEVENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “37” of the Verified Complaint.

THIRTY-EIGHTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “38” of the Verified Complaint.

Wan Hai

THIRTY-NINTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “39” of the Verified Complaint.

FORTIETH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “40” of the Verified Complaint.

IV. JURISDICTION AND LEGAL AUTHORITY

FORTY-FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “41” of the Verified Complaint and defers all questions of law to the Commission.

Service Contract Respondents

FORTY-SECOND: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "42" of the Verified Complaint and defers all questions of law to the Commission.

FORTY-THIRD: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "43" of the Verified Complaint and defers all questions of law to the Commission.

FORTY-FOURTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "44" of the Verified Complaint and defers all questions of law to the Commission.

FORTY-FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "45" of the Verified Complaint and defers all questions of law to the Commission.

FORTY-SIXTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "46" of the Verified Complaint and defers all questions of law to the Commission.

FORTY-SEVENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "47" of the Verified Complaint and defers all questions of law to the Commission.

FORTY-EIGHTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "48" of the Verified Complaint and defers all questions of law to the Commission.

FORTY-NINTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "49" of the Verified Complaint and defers all questions of law to the Commission.

FIFTIETH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "50" of the Verified Complaint and defers all questions of law to the Commission.

Non-Service Contract Respondents

FIFTY-FIRST: Admits the FMC's personal jurisdiction over MAERSK; but except as so specifically admitted, defers all questions of law to the Commission with respect to paragraph "51" of the Verified Complaint.

FIFTY-SECOND: Denies the allegations in paragraph "52" of the Verified Complaint insofar as they relate to MAERSK and defers all questions of law to the Commission.

FIFTY-THIRD: Denies the allegations in paragraph "53" of the Verified Complaint insofar as they relate to MAERSK and defers all questions of law to the Commission.

V. THE MATTERS COMPLAINED OF (ALLEGED FACTS)

FIFTY-FOURTH: Denies the allegations in paragraph "54" of the Verified Complaint insofar as they relate to MAERSK.

FIFTY-FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "55."

FIFTY-SIXTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "56."

FIFTY-SEVENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "57."

FIFTY-EIGHTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "58."

FIFTY-NINTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "59."

SIXTIETH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "60."

SIXTY-FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "61."

SIXTY-SECOND: Denies the allegations in paragraph "62" of the Verified Complaint insofar as they relate to MAERSK.

SIXTY-THIRD: Denies the allegations in paragraph "63" of the Verified Complaint insofar as they relate to MAERSK.

SIXTY-FIFTH: Denies the allegations in paragraph "65" of the Verified Complaint insofar as they relate to MAERSK.

SIXTY-SIXTH: Denies the allegations in paragraph "66" of the Verified Complaint insofar as they relate to MAERSK.

SIXTY-SEVENTH: Denies the allegations in paragraph "67" of the Verified Complaint insofar as they relate to MAERSK.

SIXTY-EIGHTH: Denies the allegations in paragraph "68" of the Verified Complaint insofar as they relate to MAERSK.

SIXTY-NINTH: Denies the allegations in paragraph "69" of the Verified Complaint insofar as they relate to MAERSK.

SEVENTIETH: Denies the allegations in paragraph "70" of the Verified Complaint insofar as they relate to MAERSK.

SEVENTY-FIRST: Denies the allegations in paragraph "71" of the Verified Complaint insofar as they relate to MAERSK.

SEVENTY-SECOND: Admits that MAERSK intends to participate in the Gemini Cooperation as of February 1, 2025; but except as so specifically admitted, denies knowledge or information as to the other allegations in paragraph "72."

The Service Contracts

SEVENTY-THIRD: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "73."

SEVENTY-FOURTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "74."

SEVENTY-FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "75."

SEVENTY-SIXTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "76."

SEVENTY-SEVENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "77."

SEVENTY-EIGHTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "78."

MSC

SEVENTY-NINTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "79."

EIGHTIETH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "80."

EIGHTY-FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "81."

EIGHTY-SECOND: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "82."

EIGHTY-THIRD: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "83."

HMM

EIGHTY-FOURTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "84."

EIGHTY-FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "85."

EIGHTY-SIXTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "86."

EIGHTY-SEVENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "87."

ONE

EIGHTY-EIGHTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "88."

EIGHTY-NINTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "89."

NINETIETH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "90."

NINETY-FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "91."

NINETY-SECOND: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “92.”

NINETY-THIRD: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “93.”

Evergreen

NINETY-FOURTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “94.”

NINETY-FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “95.”

NINETY-SIXTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “96.”

NINETY-SEVENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “97.”

NINETY-EIGHTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “98.”

NINETY-NINTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “99.”

ONE HUNDREDTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “100.”

MSC

ONE HUNDRED FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “101.”

ONE HUNDRED SECOND: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “102.”

ONE HUNDRED THIRD: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "103."

ONE HUNDRED FOURTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "104."

ONE HUNDRED FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "105."

HMM

ONE HUNDRED SIXTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "106."

ONE HUNDRED SEVENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "107."

ONE HUNDRED EIGHTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "108."

ONE

ONE HUNDRED NINTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "109."

ONE HUNDRED TENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "110."

ONE HUNDRED ELEVENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "111."

ONE HUNDRED TWELFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "112."

ONE HUNDRED THIRTEENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "113."

ONE HUNDRED FOURTEENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "114."

ONE HUNDRED FIFTEENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "115."

ONE HUNDRED SIXTEENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "116."

The Demurrage and Detention Charges

ONE HUNDRED SEVENTEENTH: Denies the allegations in paragraphs "117" insofar as they relate to MAERSK; but except as so specifically denied, denies knowledge or information sufficient to form a belief as to the allegations in paragraphs "117."

ONE HUNDRED EIGHTEENTH: Denies the allegations in paragraphs "118" insofar as they relate to MAERSK; but except as so specifically denied, denies knowledge or information sufficient to form a belief as to the allegations in paragraphs "118" and defers all questions of law to the Commission.

ONE HUNDRED NINETEENTH: Denies the allegations in paragraphs "119" insofar as they relate to MAERSK; but except as so specifically denied, denies knowledge or information sufficient to form a belief as to the allegations in paragraphs "119" and defers all questions of law to the Commission.

ONE HUNDRED TWENTIETH: Denies the allegations in paragraphs "120" insofar as they relate to MAERSK; but except as so specifically denied, denies knowledge or information sufficient to form a belief as to the allegations in paragraphs "120" and defers all questions of law to the Commission.

ONE HUNDRED TWENTY-FIRST: Denies the allegations in paragraphs "121" insofar as they relate to MAERSK; but except as so specifically denied, denies knowledge or

information sufficient to form a belief as to the allegations in paragraphs “121” and defers all questions of law to the Commission.

ONE HUNDRED TWENTY-SECOND: Denies the allegations in paragraphs “122” insofar as they relate to MAERSK; but except as so specifically denied, denies knowledge or information sufficient to form a belief as to the allegations in paragraphs “122” and defers all questions of law to the Commission.

ONE HUNDRED TWENTY-THIRD: Denies the allegations in paragraphs “123” insofar as they relate to MAERSK; but except as so specifically denied, denies knowledge or information sufficient to form a belief as to the allegations in paragraphs “123” and defers all questions of law to the Commission.

ONE HUNDRED TWENTY-FOURTH: Denies the allegations in paragraphs “124” insofar as they relate to MAERSK; but except as so specifically denied, denies knowledge or information sufficient to form a belief as to the allegations in paragraphs “124” and defers all questions of law to the Commission.

ONE HUNDRED TWENTY-FIFTH: Denies the allegations in paragraphs “125” insofar as they relate to MAERSK; but except as so specifically denied, denies knowledge or information sufficient to form a belief as to the allegations in paragraphs “125” and defers all questions of law to the Commission.

ONE HUNDRED TWENTY-SIXTH: Denies the allegations in paragraphs “126” insofar as they relate to MAERSK; but except as so specifically denied, denies knowledge or information sufficient to form a belief as to the allegations in paragraphs “126” and defers all questions of law to the Commission.

MSC

ONE HUNDRED TWENTY-SEVENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "127."

ONE HUNDRED TWENTY-EIGHTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "128."

ONE HUNDRED TWENTY-NINTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "129."

ONE HUNDRED THIRTIETH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "130."

ONE HUNDRED THIRTY-FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "131."

ONE HUNDRED THIRTY-SECOND: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "132."

ONE

ONE HUNDRED THIRTY-THIRD: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "133."

ONE HUNDRED THIRTY-FOURTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "134."

ONE HUNDRED THIRTY-FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "135."

ONE HUNDRED THIRTY-SIXTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "136."

Evergreen

ONE HUNDRED THIRTY-SEVENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "137."

ONE HUNDRED THIRTY-EIGHTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "138."

ONE HUNDRED THIRTY-NINTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "139."

ONE HUNDRED FORTIETH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "140."

ONE HUNDRED FORTY-FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "141."

HMM

ONE HUNDRED FORTY-SECOND: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "142."

ONE HUNDRED FORTY-THIRD: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "143."

ONE HUNDRED FORTY-FOURTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "144."

ONE HUNDRED FORTY-FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "145."

Maersk

ONE HUNDRED FORTY-SIXTH: Denies the allegations in paragraph "146" of the Verified Complaint.

ONE HUNDRED FORTY-SEVENTH: Denies the allegations in paragraph “147” of the Verified Complaint.

ONE HUNDRED FORTY-EIGHTH: MAERSK neither admits nor denies the allegations in paragraph “148” of the Verified Complaint because they are vague and incomprehensible.

ONE HUNDRED FORTY-NINTH: MAERSK neither admits nor denies the allegations in paragraph “149” of the Verified Complaint because they are vague and incomprehensible.

ONE HUNDRED FIFTIETH: Denies the allegations in paragraph “150” of the Verified Complaint.

CMA

ONE HUNDRED FIFTY-FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “151” of the Verified Complaint.

ONE HUNDRED FIFTY-SECOND: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “152” of the Verified Complaint.

ONE HUNDRED FIFTY-THIRD: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “153” of the Verified Complaint.

ONE HUNDRED FIFTY-FOURTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “154” of the Verified Complaint.

ONE HUNDRED FIFTY-FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “155” of the Verified Complaint.

ONE HUNDRED FIFTY-SIXTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “156” of the Verified Complaint.

Apex Shipping

ONE HUNDRED FIFTY-SEVENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “157” of the Verified Complaint.

ONE HUNDRED FIFTY-EIGHTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “158” of the Verified Complaint.

ONE HUNDRED FIFTY-NINTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “159” of the Verified Complaint.

ONE HUNDRED SIXTIETH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “160” of the Verified Complaint.

CU Lines

ONE HUNDRED SIXTY-FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “161” of the Verified Complaint.

ONE HUNDRED SIXTY-SECOND: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “162” of the Verified Complaint.

ONE HUNDRED SIXTY-THIRD: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “163” of the Verified Complaint.

ONE HUNDRED SIXTY-FOURTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “164” of the Verified Complaint.

COSCO

ONE HUNDRED SIXTY-FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “165” of the Verified Complaint.

ONE HUNDRED SIXTY-SIXTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “166” of the Verified Complaint.

ONE HUNDRED SIXTY-SEVENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “167” of the Verified Complaint.

Wan Hai

ONE HUNDRED SIXTY-EIGHTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “168” of the Verified Complaint.

ONE HUNDRED SIXTY-NINTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “169” of the Verified Complaint.

ONE HUNDRED SEVENTIETH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “170” of the Verified Complaint.

ONE HUNDRED SEVENTY-FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “171” of the Verified Complaint.

ONE HUNDRED SEVENTY-SECOND: MAERSK neither admits nor denies the allegations in paragraph “172” of the Verified Complaint as they contain no factual statements with respect to MAERSK.

ONE HUNDRED SEVENTY-THIRD: MAERSK neither admits nor denies the allegations in paragraph “173” of the Verified Complaint as they contain no factual statements with respect to MAERSK.

ONE HUNDRED SEVENTY-FOURTH: Denies the allegations in paragraph “174” of the Verified Complaint insofar as they relate to MAERSK and defers all questions of law to the Commission.

ONE HUNDRED SEVENTY-FIFTH: Denies the allegations in paragraph “175” of the Verified Complaint insofar as they relate to MAERSK and defers all questions of law to the Commission.

ONE HUNDRED SEVENTY-SIXTH: Denies the allegations in paragraph "176" of the Verified Complaint insofar as they relate to MAERSK and defers all questions of law to the Commission.

ONE HUNDRED SEVENTY-SEVENTH: Denies the allegations in paragraph "177" of the Verified Complaint insofar as they relate to MAERSK and defers all questions of law to the Commission.

ONE HUNDRED SEVENTY-EIGHTH: Denies the allegations alleged in paragraph "178" of the Verified Complaint insofar as they relate to MAERSK and defers all questions of law to the Commission.

ONE HUNDRED SEVENTY-NINTH: Denies the allegations alleged in paragraph "179" of the Verified Complaint insofar as they relate to MAERSK and defers all questions of law to the Commission.

ONE HUNDRED EIGHTIETH: Denies the allegations alleged in paragraph "180" of the Verified Complaint insofar as they relate to MAERSK.

ONE HUNDRED EIGHTY-FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "181."

ONE HUNDRED EIGHTY-SECOND: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "182."

ONE HUNDRED EIGHTY-THIRD: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "183."

ONE HUNDRED EIGHTY-FOURTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "184."

ONE HUNDRED EIGHTY-FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "185."

ONE HUNDRED EIGHTY-SIXTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "186."

ONE HUNDRED EIGHTY-SEVENTH: Denies any unlawful conduct alleged or implied in paragraph "187" of the Verified Complaint.

ONE HUNDRED EIGHTY-EIGHTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "188."

ONE HUNDRED EIGHTY-NINTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "189."

ONE HUNDRED NINETIETH: Denies the allegations in paragraph "190" insofar as they relate to MAERSK; but except as so specifically denied, denies knowledge or information sufficient to form a belief as to the allegations in paragraph "190."

ONE HUNDRED NINETY-FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "191" of the Verified Complaint.

ONE HUNDRED NINETY-SECOND: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "192" of the Verified Complaint.

ONE HUNDRED NINETY-THIRD: Denies the allegations in paragraph "193" of the Verified Complaint insofar as they relate to MAERSK.

ONE HUNDRED NINETY-FOURTH: MAERSK neither admits nor denies the allegations in paragraph "194" of the Verified Complaint as they contain no factual statements with respect to MAERSK.

VI. CAUSES OF ACTION

COUNT I: VIOLATION OF 46 U.S.C. § 41102(c) AGAINST THE SERVICE CONTRACT RESPONDENTS

ONE HUNDRED NINETY-FIFTH: Repeats and reiterates each and every admission, denial and denial of knowledge or information set forth in response to paragraphs “1” through “194” of the Verified Complaint.

ONE HUNDRED NINETY-SIXTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “196” of the Verified Complaint.

COUNT II: VIOLATION OF 46 U.S.C. § 41102(c) & C.F.R. § 545.5 AGAINST ALL RESPONDENTS

ONE HUNDRED NINETY-SEVENTH: Repeats and reiterates each and every admission, denial and denial of knowledge or information set forth in response to paragraphs “1” through “196” of the Verified Complaint.

ONE HUNDRED NINETY-EIGHTH: Denies the allegations alleged in paragraph “198” of the Verified Complaint insofar as they relate to MAERSK and defers all questions of law to the Commission.

ONE HUNDRED NINETEENTH: Denies the allegations alleged in paragraph “199” of the Verified Complaint insofar as they relate to MAERSK and defers all questions of law to the Commission.

COUNT III: VIOLATION OF 46 U.S.C. § 41104(a)(2) AGAINST THE SERVICE CONTRACT RESPONDENTS

TWO HUNDREDTH: Repeats and reiterates each and every admission, denial and denial of knowledge or information set forth in response to paragraphs “1” through “199” of the Verified Complaint.

TWO HUNDRED FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “201” of the Verified Complaint.

COUNT IV: VIOLATION OF 46 U.S.C. § 41104(a)(10)
AGAINST ALL RESPONDENTS

TWO HUNDRED SECOND: Repeats and reiterates each and every admission, denial and denial of knowledge or information set forth in response to paragraphs "1" through "201" of the Verified Complaint.

TWO HUNDRED THIRD: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "203" insofar as they relate to MAERSK and defer all questions of law to the Commission.

VII. CAUSATION

TWO HUNDRED FOURTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "204" of the Verified Complaint.

TWO HUNDRED FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "205" of the Verified Complaint.

TWO HUNDRED SIXTH: Denies the allegations in paragraph "206" of the Verified Complaint insofar as they relate to MAERSK.

TWO HUNDRED SEVENTH: Denies the allegations in paragraph "207" of the Verified Complaint insofar as they relate to MAERSK.

VIII. REPARATIONS SOUGHT.

TWO HUNDRED EIGHTH: Denies the allegations in paragraph "208" of the Verified Complaint.

TWO HUNDRED NINTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "209."

TWO HUNDRED TENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "210."

TWO HUNDRED ELEVENTH: Denies the allegations in paragraph “211” of the Verified Complaint insofar as they relate to MAERSK.

TWO HUNDRED TWELFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “212” of the Verified Complaint.

TWO HUNDRED THIRTEENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “213” of the Verified Complaint.

TWO HUNDRED FOURTEENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “214” of the Verified Complaint.

TWO HUNDRED FIFTEENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “215” of the Verified Complaint.

TWO HUNDRED SIXTEENTH: Denies the allegations in paragraph “216” of the Verified Complaint insofar as they relate to MAERSK.

TWO HUNDRED SEVENTEENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “217” of the Verified Complaint.

FIRST AFFIRMATIVE DEFENSE

The claims alleged in the Verified Complaint against MAERSK are barred in whole or in part by the applicable statutory or contractual limitation period(s).

SECOND AFFIRMATIVE DEFENSE

The Verified Complaint fails to state viable claims against MAERSK as it alleges no facts or evidence of unlawful or unreasonable practices or conduct on the part of MAERSK.

THIRD AFFIRMATIVE DEFENSE

EUROMARKET DESIGNS, INC. cannot establish that MAERSK engaged in any unjust or unreasonable practice.

FOURTH AFFIRMATIVE DEFENSE

EUROMARKET DESIGNS, INC. has no contractual privity with MAERSK with respect to the allegations in the Verified Complaint and MAERSK breached no contractual or other legal duty to EUROMARKET DESIGNS, INC.

FIFTH AFFIRMATIVE DEFENSE

EUROMARKET DESIGNS, INC. lacks standing to assert the claims alleged in the Verified Complaint because it is not a direct purchaser of MAERSK's services and did not pay the disputed charges to MAERSK.

SIXTH AFFIRMATIVE DEFENSE

EUROMARKET DESIGNS, INC. lacks standing to enforce a penalty for any alleged "prohibited act" under Section 40501 of the Shipping Act.

SEVENTH AFFIRMATIVE DEFENSE

The claims alleged in the Verified Complaint are barred by the doctrines of equitable estoppel and/or unclean hands.

EIGHTH AFFIRMATIVE DEFENSE

The claims alleged in the Verified Complaint are barred by EUROMARKET DESIGNS, INC.'s failure to mitigate the alleged damages.

WHEREFORE, Respondent, MAERSK A/S, demands judgment dismissing the Verified Complaint with prejudice and for such other and further relief as the Commission may deem just and proper.

Dated: February 3, 2025

GEORGE W. WRIGHT & ASSOCIATES, LLC

By: /s/ George W. Wright
GEORGE W. WRIGHT
Attorneys for Respondent
MAERSK A/S
505 Main Street, Suite 106
Hackensack, NJ 07601

**VERIFICATION OF RESPONDENT
MAERSK AGENCY USA INC.**

Scott Bilheimer hereby verifies as follows:

1. I am the Regional Head of Surcharges for Maersk Agency USA Inc. as agent of Maersk A/S.
2. I am authorized to make this Verification on behalf of Maersk Agency USA Inc. as agent of Maersk A/S.
3. I hereby verify that the facts contained in the forgoing Answer and Affirmative Defenses are true and correct to the best of my knowledge, information, and belief.
4. I verify the foregoing under penalty of perjury under the laws of the United States.

Dated: February 3, 2025



SCOTT BILHEIMER

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 3rd day of February, 2025, the foregoing

Answer to Complaint was served via electronic mail on:

Matthew J. Reynolds, Esq.
HUTH REYNOLDS LLP
7800 Grampian Court
Chesterfield, VA 238838
(reynolds@huthreynolds.com)
Counsel for Complainant

Gregory A. Crapanzo II, Esq.
HUTH REYNOLDS LLP
809 N. 26 Street
Richmond, VA 23223
(gcrapanzo@huthreynolds.com)
Counsel for Complainant

Karl C. Huth, Esq.
Joshua Luke Rushing, Esq.
HUTH REYNOLDS LLP
41 Cannon Court
Huntington, NY 11743
(huth@huthreynolds.com)
(jlrushing@huthreynolds.com)
Counsel for Complainant

Gary S. Wolfson, Esq.
Edward A. Keane, Esq.
MAHONEY & KEANE, LLP
40 Worth Street, Suite 602
New York, NY 10013
Telephone : (212) 385-1422
(gwolfson@mahoneykeane.com)
(ekeane@mahoneykeane.com)
*Counsel for Respondent Evergreen
Marine Corp. (Taiwan) LTD*

Richard L. Beaumont, Esq.
Jessica Link Martyn, Esq.
LINK MARTYN PLLC
82 Nassau St. Suite 61985
Norfolk, Virginia 23510
New York, New York 1003
Telephone: (757) 623-3000
(rbeaumont@linkmartyn.com)
(jmartyn@linkmartyn.com)
*Counsel for Respondent
Apex Maritime Co, Inc.*

Steven M. Stancliff, Esq.
James J. Levantino, Esq.
VENTKER HENDERSON STANCLIFF, PLLC
256 W. Freemason Street
Norfolk, Virginia 23510
Telephone: (757) 675-9464
(ssnacliff@ventkerlaw.com)
(jlevantino@ventkerlaw.com)
*Counsel for Respondent
Ocean Network Express PTE LTD*

W. Ryan Snow, Esq.
K. Barrett Luxhoj, Esq.
Mackenzie R. Pensyl, Esq.
CRENSHAW, WARE & MARTIN PLC
150 West Main Street, Suite 1923
Norfolk, Virginia 23510
(wrsnow@cwm-law.com)
(kbluxhoj@cwm-law.com)
(mpensyl@cwm-law.com)

Wayne R. Rohde, Esq.
Kathryn Sobotta, Esq.
Rachel Schwartz, Esq.
Christopher Raleigh, Esq.
Joshua Stein, Esq.
Neil Quataro, Esq.
COZEN O'CONNOR
2001 M Street NW, Suite 500
Washington, DC 20036
(wrohde@cozen.com)
(ksobotta@cozen.com)
(rschwartz@cozen.com)
(craleigh@cozen.com)
(jstein@cozen.com)
(nquataro@cozen.com)
*Counsel for Respondents MSC
Mediterranean Shipping
Company SA, HMM Co., Ltd.,
and Wan Hai Lines Ltd.*

/s/ George W. Wright
GEORGE W. WRIGHT